

THE DELINQUENT

Vol IV, No. 6

June, 1914

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JUNE, 1914

THE DELINQUENT

(FORMERLY THE REVIEW)

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MENTAL AND PHYSICAL FACTORS IN PROSTITUTION^[1]

BY EDITH R. SPAULDING, M. D.

[Resident Physician, Reformatory for Women, South Farmington, Mass.]

That a better knowledge of the mental and physical characteristics of the prostitute herself could be obtained, and the causes as well as the results of her life be understood, the following study was undertaken. 240 women who have recently been inmates at the Massachusetts Reformatory for Women have been studied. All cases were included in which at any time there had been a history of commercialized promiscuous sex immorality. Only those cases were discarded in which the physical examination was incomplete, if the history obtained gave no evidence of disease.

A study such as this does not aim to discover the fundamental physical or mental causes of prostitution as a social problem in the community. Such a problem is too involved to be considered from this limited standpoint. Recognizing, however, the fact that there is the demand in society, this aims to show the types of women from whom the supply is obtained and the benefits which may be derived for the community by further study and treatment of such types.

Two hundred and five of the cases studied have received a psychological examination. This has included the history of their educational advantages and a study of the results obtained, as well as psychological tests which estimate native ability aside from formal educational training. In all doubtful cases, or in cases in which there appeared to be mental defect, the Binet-Simon tests have also been used. As a result of these examinations the cases have been roughly classified as follows:

		Per Ct.	
Mentality Good	43 cases	20.9	32.6
” Fair	24 ”	11.7	
” Dull	30 ”	14.6	

”	Subnormal	62	”	30.3	
	Moron	45	”	22.5	52.8
	Imbecile	1 case			

	Total	205 cases			

About a third of the cases showed fair or good mentality. These cases have been studied in detail for evidence of other mental and nervous defects aside from mental deficiency. The results will be given later. Over half of the cases studied were found to be defective mentally. This corresponds to the results of the investigation of the White Slave Commission^[2] made recently in Massachusetts, in which 51 per cent. of 300 cases studied mentally were found to be defective and represented segregable types. We should consider at least one quarter of our own cases segregable from a standpoint of mental defect alone, and besides these perhaps, another 20 per cent., candidates for a defective delinquent institution, if such a classification should include those cases which show marked psychopathic tendencies associated with subnormal mentality. The cases which are considered segregable types appear to be unable to care for themselves in the community. Besides the harm that may be done to them on account of their weakened resistance they become an active menace to others; first, through the spread of venereal disease; second, through their immoral influence in the community; and third, through bringing into the world children who will grow up to be as much a menace to society as they themselves have been. It should be the responsibility of representative members of society to see that provision is made for the care of such individuals, and that they are not punished for offences for which they can in no way be considered responsible.

Besides the cases showing mental defect alone, there are many cases both among the mentally defective and those showing normal mentality, which show other mental or nervous defects, such as epilepsy, hysteria and psychopathic tendencies. In the study of criminality of all kinds, such abnormal mental and nervous conditions play an important part. This is especially true of the class of women which is arrested on account of sex offences. In the environment of mill towns and certain sections of large cities, from which a large part of this population comes, the temptations which appeal to sex are tremendous, even to the individual who has a

normal mentality and is well balanced. If through such conditions as slight mental dullness or extreme nervousness, the equilibrium is disturbed, the power of resistance is lost and the individual is unable to cope with the temptations which are usually about her.

Eighteen cases or 7.5 per cent. of the 240 cases studied have been epileptics; 16 cases or 6.6 per cent. have hysteria. Both conditions are very important as factors of social instability. The variability of epileptics and the extremes of which they are capable are well known to students of criminology. Many times we find cases suggesting a latent epilepsy among individuals in whose families there are other cases of the same disease. In these cases we see only what appear to be psychic manifestations or great irregularity in tests and behavior.

The cases of hysteria are also interesting on account of their extreme suggestibility. It is only necessary to watch the manifestations of this characteristic in an institution, to realize what an important factor suggestibility has been in the outside world in leading to their delinquencies. Mental imagery in such cases is of immense importance. One case of hysteria which we had under observation would while in her attacks of unconsciousness, often repeat (naming a woman who was living a life of prostitution outside), "Mary, I will come to you; I will give up my child; there is nothing else for me in the world and I will come to you and do as you say." In studying her mental processes, the pictures which had been drawn for her of luxury and gaiety in such a life were continually before her, too strongly contrasted with any reasonable pictures which it was possible for us to conjure up for her.

Another important class is that which includes the borderline cases, which have perhaps never been satisfactorily classified. Many of these would be in the group termed by one authority "control defectives." The term expresses well their explosive natures which may be seen when, without provocation they attack any person who happens to incite their enmity, whether she be officer or other inmate, or when by unreasonableness and loss of temper they bring unruliness and the necessity for discipline into an otherwise peaceful and well-behaved group. Many of these cases come from families in which there are many cases of insanity, and although they themselves show no signs of a definite psychosis, there appears to be much inherited instability. Other cases show the results of a meningitis or an encephalitis

which they have had in childhood. Occasionally we see cases in which the instability apparently followed a head injury.

Besides these cases there are many who have previously been confined in hospitals for the insane, and who represent very unstable types. They may or may not have defective mentality, associated with the defect in self-control. They are one of the hardest classes of cases to deal with in institutions of any kind. The officers of penal institutions recognize their abnormality, and feel that they should be confined in insane hospitals because of their dangerous character. On account of the lack of a definite psychosis the insane hospitals naturally take them very unwillingly. Even though they show marked mental defect, institutions for the feeble-minded are unwilling to admit them because of the demoralizing effect they produce on the more amenable types and the upsetting influence they have upon the institution routine. Many of these cases will doubtless be sent to defective delinquent institutions when those institutions shall at last be established. Whether the defect is a mental one or a nervous one matters little in their menace to society. The following case may be cited as an illustration of such a type:

A woman was arrested for assault after trying to throw vitriol in her lover's eyes. At that time she was taken from the jail to a hospital for the insane because she had marked hallucinations of sight and hearing. These at the time were thought to be of alcoholic origin, and disappeared quickly. She was transferred to the reformatory where she had previously served a sentence. At various times since her confinement there she has assaulted other inmates and matrons, often violently. Recently, after such an attack on a matron, she apparently seemed ignorant of what she had done. While she acknowledged having attacked people in the past, she felt that this time they had attacked her. A few days later she was found in a vague although rather savage mental condition, with marked delusions. She had had hallucinations of sight and was not oriented as to time or place. The woman is subnormal mentally and it would have been hardly possible for her to have feigned the condition. That evening, becoming annoyed at something, she flew into a tremendous rage, which was much more characteristic of her

usual self than the previous dazed condition had been. Her violent temper seemed to bring her to herself, and the next morning she could recall but faintly what she had said the day before, although she remembered vaguely being much more frightened at what she thought she had seen in her room. Two days later she laughed at what she was told she had said, realizing the ridiculousness of it and could hardly believe that it was true.

Although the condition and its quick recovery suggested an hysterical basis (no evidence of epilepsy has been found, and alcohol was ruled out by her long stay in the institution) nevertheless, the condition while it lasted made her wholly irresponsible, and it can easily be seen what a menace such an individual would be in a community. Thirty-seven per cent. of the 240 cases studied represent aberrational types of greater or less intensity. It can readily be understood what a factor such types would be in furnishing individuals of weakened resistance to help fill the demand of prostitution.

The 67 cases showing apparently normal mentality when studied further have revealed the following characteristics:

Twenty-eight cases have shown hysteria, epilepsy or marked aberrational tendencies. Of the 39 cases remaining, 8 show innate characteristics, which, combined with the unfortunate conditions of home and environment in which they were placed, were apparently responsible for their delinquency. The innate characteristics of these cases include the following:

The aggressive untamed personality with primitive passions; the woman who has gone through life with a chip on her shoulder, believing that the world owed her a living; the sensual type which has over-developed physical characteristics; the immature personality, non-resisting in temperament (often called weak-willed), which is unable to appreciate and shoulder responsibility; excessive vanity and love of pleasure in an indolent nature, or the craving for excitement and applause and the love of leadership, with only undesirable avenues open in which to exercise it.

Three cases were due largely to home environment alone. In these cases there has been immorality between different members of the family. Five

cases were due to the environment in the community alone,—with an apparently good home environment a single bad companion or group of companions had definitely influenced them to lead immoral lives. The factors in two cases were unresolved. Twenty-one cases appear to be due to the environment in the home and in the community, and were apparently normal types. The last group of 31 cases, however, represents but 15 per cent. of the 205 cases studied. Considering that those cases which show poor mental ability are perhaps not able to cope fairly with their environment on account of their slight mental defect, we find 85 per cent. of the cases studied showing some underlying defective mental or physical factor. We do not believe that this represents to any extent the cause of prostitution, for there are doubtless large numbers of individuals in the community with the same mental and physical defects who are not leading such a life. Still we feel that this class of women, if not sufficiently protected, represents the ones who are first (on account of their weakened resistance) to offer themselves to fill the demand. It may be interesting to note, in this connection, that although all of these cases have been studied from a social standpoint, and their own reasons for going into such a life have always been inquired into, in only two cases have we been able to find any definite relation between the economic conditions and the choice of this means of livelihood.

The Physical Aspect.

As complete a clinical history as possible has been obtained from each woman, and has been supplemented in as many cases as possible by laboratory tests to determine the extent of venereal disease. If the clinical history or the laboratory findings have given evidence of venereal disease, the individual has been considered to have the disease without the verification by both methods. As has been stated before, those cases in which there was no evidence of disease, but in which it was impossible to make a complete physical examination, have been discarded. As a result of these examinations we have found only one case, which after complete examination, did not show the presence of either disease. Thus over 99-1/2 per cent. of the cases show the presence of one of the two venereal diseases—134 cases or 55.8 per cent. gave no evidence of having had both.

Of 238 cases which were examined for syphilis, 156 or 65.5 per cent. gave evidence of having had the disease. The results of the examinations for syphilis are as follows:

		Per cent.
Number of cases giving evidence of the disease clinically or having a positive Wassermann reaction	156 ^{or}	65.5
Number of cases giving positive Wassermann reaction	137 or	57.5
Number of cases giving a positive history or presenting symptoms of the disease	85 or	35.7
Number of cases which were verified by both history and Wassermann reaction	64 or	26.9
Number of cases giving a negative Wassermann reaction and presenting no clinical evidence of the disease	82 or	34.9
Number of cases giving evidence clinically or bacteriologically of the disease	216 or	96.8
Number of cases which gave a clinical history of the disease	209 or	93.7
Number of cases verified by bacteriological examination	159 or	71.3
Number of cases verified by both methods	152 or	68.17
Number of cases examined clinically and bacteriologically which gave no evidence of the disease	7 or	3.1

If only the cases were selected in which it was possible to obtain complete examinations both clinically and by laboratory methods also, these percentages would undoubtedly be much higher. However, as they stand at present, they represent a great factor in the problem of prostitution. Statistics have shown that 22 per cent. of first admissions in hospitals for the insane are cases with general paresis, which is considered psychosis resulting from syphilis. This factor alone should make us realize the importance of the treatment of such a disease in the community and the necessity for hospitals (as pointed out by the report of the White Slave Commission of Massachusetts) where people could be invited to come for the treatment of this disease as well as for gonorrhoea. At present, as is only too well known, there are very few hospitals where either of these diseases are treated, and it will be remembered that these are the only contagious diseases which have not been made reportable by the Board of Health.

In studying the lives of these individuals for the factors which have determined their mode of life, there are several physical characteristics which should be mentioned. First, the perfectly normal condition of adolescence is always to be taken into consideration. In many cases of individuals with less than normal stability and insufficiently protected environment, it has been the adolescent tendencies which have been the dominant factor in determining their life. Again, the factor of too early development has often been seen. Puberty appears before the inhibitions which come with adolescence have had time to be correspondingly developed. This is a very noticeable factor in the study of such cases found in the juvenile court, and has been recognized in our own cases and verified by the histories obtained from the parents of the individual. Besides these factors, there is the type in which the physical characteristics predominate from birth. While it may be possible for these individuals to have their energy directed along constructive lines, it is often impossible to reach them and recognize their struggles until habits of an unfortunate nature have been irrevocably formed in their lives.

Summary.

In reviewing the 240 cases, which we appreciate represent the types which come to reformatories and are not necessarily characteristic of all types of prostitution in society, we find the following facts: 52 per cent. defective; 16 per cent. dull; 28 of the remaining 67 cases with normal mentality showed other mental and nervous defects. Only 15 per cent. of the whole number appeared to be normal mentally and physically. Probably 40 per cent. could be considered segregable types and should be placed permanently, or at least during the child-bearing age, in custodial institutions. If these cases who are apparently unable to care for themselves could be removed from the community, we believe the supply for prostitution would be materially lessened and that such a movement would be a help in attacking the problem.

As has already been said, practically 100 per cent. of the cases studied show the presence of at least one of the two venereal diseases, while over 55 show the presence of both.

Of the cases studied for evidence of syphilis, over 65 per cent. had had the disease; of those studied for gonorrhoea over 96 per cent. gave evidence of having had it. Should we not recognize the far-reaching results of such diseases in a community and use every means possible to help eliminate them?

No one disputes the fact that the problem of prostitution is largely a moral one, and must be solved through educational methods. However, while we believe that certain conditions can be much alleviated, we believe also that the problem will never be fully solved from the moral standpoint alone. The most crying need of the present time is in the mental and physical aspect of the situation, and we believe that the greatest possible emphasis at this time should be laid on these factors and their great menace to society.

[1] Read at the National Conference of Charities and Corrections, Memphis, May, 1914.

[2] Report of the Commission for the Investigation of the White Slave Traffic so called.

THE NEW HAMPTON FARMS

BY PHILIP KLEIN

“There is plenty of room at the table, and we’ll have a bunk to spare too, I guess,” was the answer to my request to be taken care of at the New Hampton Farms that I was about to inspect. It would have sounded like a joke to me had I not been acquainted with the plans for the farm from the very beginning. The answer was to be taken literally. It is nothing new in this country to take prisoners outside the institution walls; to leave them unguarded at their work; for officers to talk with them as man to man; for them to live in temporary, frail quarters. But the New Hampton Farms goes beyond that. Its thirty-odd young inmates and four of the five ‘officers,’ including the superintendent, sleep in the same bunkhouse, and eat at the same tables. The bunkhouse is as rough as can be, the eating arrangements no less primitive. The whole physical outfit of the farm is a striking demonstration of how much practical genius and invincible enthusiasm can make of the most inadequate means, of the poorest equipment. Yet even this is not the striking feature of this institution.

The City Reformatory for Misdemeanants of the City of New York is situated on an island of about 100 acres, within the limits of the City of New York. Its buildings are inadequate and overcrowded, its officers insufficient, its methods largely repressive. It receives misdemeanants between the ages of 16 and 30. On the same island is situated a branch of the Workhouse of New York City, where the most useless of the city’s criminal population is confined. To prevent intercourse between the inmates of the two institutions is well nigh impossible. As a result of all this, the Reformatory has hardly deserved its name. After long and painful efforts, the purchase of a 600 acre farm in Orange County, 60 miles from New York, was effected, in order to remove the Reformatory to the country, and to make it worthy of its name. So there was the farm, but without appropriations for building the institution. And the overcrowding at the Reformatory was worse than ever.

It was not only a question of relieving the congestion, though that certainly was a large factor; nor was it chiefly to remove the Reformatory from the vicious proximity of the Branch Workhouse. The plans that had been developed for the New Reformatory were based on penological principles quite at variance with those necessarily carried out at the present location. The new institution would have to permit the utmost possible classification and individualization; but above all it would have to establish the possibility of practical inspiration of its inmates by the encouragement of self-respect, by the exercise of individual responsibility, by healthful contact between officer and inmate. And in many other ways it was to strike out into new treatment of reformable young men. To this ambition for a reformatory on such lines was added the possession of a large fertile farm, the approach of spring—and the enthusiastic propositions to Commissioner Katherine B. Davis from the present superintendent of the Farm, Robert Rosenbluth.

“Let us build up the spirit with the institution” was his plan in brief. What was this spirit to be? “Just what are the essentials of your experiment?” I asked Mr. Rosenbluth. “It is,” I said, “a commonplace, of course, to talk of the advantages of agricultural occupation, of fresh air, hard work, and ‘honor system’; and the economic advantage of utilizing, instead of wasting, a good farm for a whole season surely could not have created in you the amount of enthusiasm which you are carrying into this thing; after all, even though you do produce quite as much as \$10,000 worth of farm product, it will hardly cover your expenditures for the year.”

“You are right,” he said, “those things are all very well but they are not fundamental. None of those things counts a heap towards reformation; the honor system is simply a more sensible, more effective method—it’s a fairer method of preserving discipline, an easier method of running your institutions. It does not touch your real man. It is all a matter of habit. Now take those Dannemora prison fellows with whom I worked in the forests around the prison; they were repeaters, many of them hardened evil doers. And take these fellows here—young fellows—and just hear them talk among themselves, as I had a chance to hear them talk, night after night—nothing but crime. It’s an obsession. Naught else has any interest for them. If it is not their own exploits, then it is the latest from the newspapers (for you don’t suppose all the regulations and punishments on earth can keep the newspapers out of a prison). The only thing they are interested in is crime.

Everybody talks crime. How can you reform a fellow whose mental habit is crime? My idea is this: You have got to change their topic of conversation. You've got to coax their minds to a higher level. And you can't just tug at them from above. You have to be taken into their community, into their confidence, you've got to be one of them. You must push their thoughts upward from within instead of pulling from above.

"My officers are all first class men. They are graduates of schools of agriculture or forestry. And they have all lived in close contact with men. They sleep in the same room, on the same rough bunk in our three-decker, go to bed with the boys, rise with them. Their food is exactly the same—neither different nor more. They do their day's work just like the boys. Their hardship is no less than that of the boys. And the boys know that and feel it. Now, see, my point is this, I have a right to expect the same thing from the boys that I expect from my men, who are required to undergo the same hardships as the boys. In this way I establish an equality which enables us to get into the community of the boys, and naturally control their conversation and their thoughts. Thus they are really reformed without their knowing it."

The spirit among the boys and the officers was certainly remarkable. They joked, called each other by their first names, and were "kidding" each other at a great rate. I was wondering what would happen when the question of authority arose. I was not disappointed. Alongside the joyous camaraderie, there was a willing recognition of unquestioned authority.

"You'll be up in court, Kid; you went fish'n without permission", I heard one of them yell to another, and a little later, when one of the recent arrivals wanted to go to the farmhouse to see the incubators, an older member of the colony instructed him in a casual way.

"You gotta git p'rmission from Bob first." "Bob" is Mr. Rosenbluth.

How open and frank the spirit of the conduct of the "court" is, and how it reflects the character of the whole institution, I could only guess, for unfortunately no session of the court could be held that Sunday, as is the custom. In the midst of conversation of a group of some ten of the boys one of them remarked that there would be no court that day.

“We ain’t got many cases, Bob, only one fight, one fishin’ without asking, and one fellow smoking out of time.” There was no secret report or accusation; only a cooperative policing, with apparently no trace of grudge. Yet the boys average probably more than twenty years of age.

The unfortunate circumstances that prevented court session, as well as the regular base-ball game and morning service that Sunday, was the lamentable drowning of one of the boys while taking a swim, the Thursday preceding. Despite the presence of several good swimmers, and their desperate efforts to save him, he went down beyond aid. The river was dragged the same day, but no trace of his body was found. The next day and the day following was the real test, in my opinion of the spirit of the Farm. The officers were preoccupied, the coroner, undertaker, reporter were busy about the place; some of the boys were taken from their regular work to search for the body; supervision was practically naught. But the season was late. The farm behind time. Work had to be continued. And the boys did work, though with hearts heavy with real sorrow. The next day, Saturday, the coroner dynamited the river in order to bring the body to the surface. Curiosity was added to possible desire to shirk work. Yet all but those aiding in the search were at their ploughs or hoes. Several acres were ploughed and five acres of corn planted by less than twenty boys on Saturday afternoon alone.

Early next morning the body was found by one of the boys on search duty. The body was taken to Middletown, three miles away, by the coroner’s undertaker. Morning service was postponed. The rest of the morning was given over to bathing and to visits to the boys. The visitors roamed the farm with the boys at will. The day was ideal, and with the remarkably attractive scenery, helped lift the gloom from the little colony. Even death cannot darken very long such a beautiful spring day in Orange County. Dinner came along for a hungry two-score, with spirits still somewhat subdued, but no longer blackened by the shadow of death. To the regular dinner crowd there were added now the wife and child of the officer occupying the farmhouse.

There were three long tables, with benches on either side, all constructed of boards such as were used for building the bunkhouse. The carpet of the dining room was rich green grass, and the ceiling green foliage and blue sky, all gilded with bright warm sunshine. A brisk fresh breeze made

electric fans superfluous. Roast beef, gravy, brown baked potatoes, coffee with real milk in plenty, (from the four cows borrowed from another institution) and the most delicious of lemon pies rapidly disappeared.

Soon after dinner a service was held. I confess I was quite curious to see this service, without minister, conducted by "Bob," separated from his group by the deepest of sectarian differences. At these services occurrences of the week and plans of the coming week are talked over, and a kind of rough-and-ready, heart-to-heart moralizing is done. The subject, this day, was of course the death of their unfortunate comrade. I did not know then, that the most impressive of all funeral services I have ever seen, was to come that afternoon. The boys and instructors (that is what the officers are called) lay in a group on the grass under the shade of tall trees, and Bob sat on a stump. His face showed signs of the deep anxiety and sleeplessness of the last few days. The talk was brief. The boys were asked to meditate over the decease of their friend, and draw their own lessons. One point only was enlarged upon. Some neighboring farmers had criticised the management for continuing to work during the two days following the day of the accident. "If sorrow is heartfelt, it does not require that duty towards the living be sacrificed to empty form in regard to the dead." Only the words were simpler, more explicit.

The afternoon was spent in gathering flowers to give to the parents of the dead comrade, who were to arrive that afternoon. There was a wreath of white lilacs, and bunches of lilies of the valley, and white wild flowers. When the parents arrived, boys and instructors stood bare-headed in front of the old dilapidated framehouse that had been patched up to serve for the various purposes of the farm, and as a kind of general field headquarters. Some twenty to thirty feet from the house each boy had planted a tree on arbor day. After a few words from Bob, the tree that had been planted by the dead boy was dug up and transplanted to a place of honor. Then amid deep silence, the father spoke to the comrades of his lost son. It is impossible for me to render the simple words in their true effect. He hoped that the death of his son might teach the rest of the boys the same lesson that his life could no longer teach, namely, that the efforts of good men could not fail to save them from evil careers, if they brought but a little good-will towards those that were willing to help them regain their true selves.

Not an eye remained dry, and the instructor who offered the simple closing prayer—in the absence of any minister—could hardly choke down his tears. They had lost their son when he was all but saved from the abyss of crime, by nature and by good men.

Under the stress of such an intense day, following days of hard labor under untoward conditions, I came to understand why Mr. Rosenbluth insisted so much upon the personality of his helpers; why he had spent large sums of his own private funds, to persuade men to leave better paying, often more than twice as remunerative positions, to come to the farm. These men sacrificed money, comfort, even the one day in the week freedom, to spend all their time with the boys, to reform them by sheer force of personality. In labor, in fun, in sorrow they understood and were understood by the boys. They could laugh with them and keep silence with them. I want to congratulate them all: Mr. Rosenbluth and his aids Messrs. Blue, Buck, Ford, Wissner for their remarkable ability to dispense with the pleasure of pleasure-seeking, for the pleasure of service.

The success of the New Hampton Farms as an experiment in reformation lies surely not in its fertile soil, its excellent location, the unprecedented plans for the classification of its future inmates, for the erection of the future buildings. The crops of the farm in this handicapped year may prove economically profitable or disastrous. Individual inmates may escape, or otherwise disgrace the little colony. Many may fall again into temptation, among bad companions, filthy, immoral environments, and their own vicious inclinations. But the farm has already shown that there can be a vastly different spirit between a different type of officers and the same inmates, and that this “spirit can be built up with the institution.”

PSYCHOLOGICAL WORK WITH OFFENDERS FOR THE COURTS

BY WILLIAM HEALY, M. D.

Director Psychopathic Institute of the Juvenile Court of Chicago

The main trend of our findings and the outlook now, after five years' study of offenders in connection with courts, is requested. It is plain that in a short paper only a few of the more prominent points can be touched. We must leave analyses and adequate descriptions for our larger publications. However, we can here discuss some of the outcomes and limitations of applied methods. In this summary fashion, taking stock may be wise just at this time, when the practice of psychology is beginning to be exploited similarly to the practice of medicine. Also, lack of knowledge in many quarters of this new work and perhaps, the recent statement of a well-known clinical psychologist to the effect that psychology (or at least he says pseudopsychology) can render no aid in the courts, call for review of the facts.

Concerning the part that psychology in its practical, applied, clinical aspects should play in the court work, we may consider the following. View it as you may, there is no escape from the basic fact that conduct, social behavior, is a product of the mental life of the individual. The most direct driving forces of misconduct therefore are very properly to be regarded as material for study which comes well within the province of the science of mental life. (It must have been this which led the great jurist and criminalist, Gross, to state that psychological valuations must ultimately become the basis of all criminal law.) An individual differential psychology is involved which requires knowledge of the bearings which many varieties of mental conditions have upon action.

At the beginning of our work, we were advised by the most eminent psychologists that the field was virgin. Everywhere we were told that the use of the standard apparatus of the laboratory, the ergograph, plethysmograph, the chronoscope, all had no bearing on our problem, for

the results from none of them had been found to be correlated with any traits or conditions which were of peculiar significance in offenders. Many hopes that had been expressed by those who ardently desired the rapid practical extension of psychology had not borne fruition. We were told that methods must be worked and normal sought out. In other words, it was deliberately stated by many, that neither classical nor experimental psychology had as yet anything to offer for dealing with this human problem. To introduce the usual and often complicated devices of the laboratory, which are for measuring and discriminating the simpler elements of mental life, would be, it was said, to delude ourselves and be in the position of misleading others. In accordance with our appreciation of this consideration we have all along proceeded by methods which seem to have in them the greatest proportion of common sense, and to be most likely to show correlation between offending careers and characteristics possibly at the root of criminalistic tendencies.

Moreover, as time has gone on we have become more and more convinced that those who study offenders should seek not only for peculiarities and disabilities, correlated with tendencies to offend, but also for potentialities, for special abilities which might be utilized for educational or occupational success. To grade the delinquent downwards is not sufficient. There may be the possibility of constructive work with him. As a matter of fact, some of the most encouraging results of our own efforts have come through the discovery that the offender was suited for something which he had never had the chance of doing, and that a corresponding adjustment of his affairs brought cessation of delinquencies. This has been even true with certain types of defectives.

Early in working with our cosmopolitan population, (and to a less extent the trouble would have shown itself among those of one language) we saw that any method of mental evaluation which was based largely upon language tests, whether or not given by such a questionnaire method as that of Binet was quite unfair. Language, our universal method of communication, does not cover all the social graces, all the social values, nor does adeptness in the use of it mean unusual general ability. In fact, nothing has been any more striking in our findings than that some otherwise normal individuals have special defects for language, and that some general defectives have such powers in manipulating words that pass everywhere, even in courts, as

normal and even bright. It was soon felt that over and beyond tests which involve the medium of communication, it would be more profitable to observe a performance with concrete material which possibly might be arranged to measure some of the socially most valuable mental qualities.

Such performance tests have had a great growth in these five years, as emanating from several centers, until at present they are quite widely used. For work with offenders, there is at present a wide range of tests to choose from. For practical clinical work even more tests are desirable, and it may be that some of those now used will be gradually discarded and replaced by others. It stands out very clearly that what one would like to know particularly about offenders is how they grade, not only in general intelligence, but also on tests which may possibly evaluate the powers of apperception, of mental representation, of self-control, of the ability to learn by experience, and so on. Defects along these lines seem likely to stand in much greater correlation to delinquent tendencies than any other we could name. Special educational and industrial disabilities may make for social failure and so may indirectly lead also to delinquency. It is usually not difficult to ascertain the nature of these defects. A few steps towards discovery of vocational aptitudes can also be made by the use of tests.

We still think that the early advice to keep our testing methods simple and direct was thoroughly sound. It is evident that we can use with scientific safety the Binet scale for grouping young children and defectives up to the level of 10 years. Beyond this, by using a wide range of other tests, we can discriminate other subnormal groups who are either defective in general or in special abilities.

In the present state of our knowledge concerning methods discretion is needed in the selection of tests. Those primarily adapted to one group may not be valid for another social or age group. We have just finished an interesting comparison of the results of a certain performance test in which college young women did worse on the average than younger persons. We have all too little proof that tests worked up for children are equally valid for adults. It is proposed that we render decisions upon, for instance, findings by the Binet tests, and yet it does not seem likely by the sort of results we ourselves have been getting that they could be as freely applied to adults as to children for the purposes of social diagnosis, of discriminating those who are bound to be unsuccessful. We must remember

that no one as yet has given us the results of these tests as applied to hundreds of ditch diggers, or section hands, who in their lowly spheres form most useful members of society.

When it comes to the interpretation of tests we need to exercise much discretion. It is most dangerous to proceed to render diagnosis or prognosis without knowledge of the individual's background in heredity, developmental history and social environment. Such items as previous illnesses, present physical condition, debilitating habits, and educational opportunities need to be noted. In our work the question of epileptic variations alone is frequently before us. We see very clearly that grave injustice to the situation may be done without taking such possible features of the case into account.

Very different phases of psychological work with offenders properly are taken up from the viewpoint of human conduct in general being the province of the student of human life. Quite the minority of offenders show mental peculiarities which can be learned by testing and then related to their delinquencies. Let us look at some comparisons of offenders as we have grouped them by most careful study. Our court work has been in the main to see the problem cases. Undoubtedly most of the suspected psychotic or defective cases have been selected and brought for study. We have made a series of 1000 recidivists, repeated offenders, the average age of whom is about 15 years. These have been graded by mental tests most carefully and we have found the following:

	Per cent.
Considerably above ordinary in ability	3
Ordinary or fair in ability	55
Poor in ability	9
Mentally dull, but suffering from defective physical conditions, or disease, or bad habits, which may be the cause of the dullness	8
Sub-normal mentally, but not strictly feeble-minded	8
Feeble-minded (moron grade)	9
Feeble-minded (imbecile grade)	1
Psychoses, ranging from well marked cases of insanity to temporary, but well-marked mental aberrations	7

I have found in various parts of the country considerable doubt expressed in regard to various statements which have been made of the proportions of the feeble-minded which probably would be found by studying juvenile offenders. Teachers, judges, and probation officers have scouted the idea that there was upwards of 25 per cent. feeble-minded among the children which come before a Juvenile court. Our own long investigation would certainly show otherwise. But of course we have never seen all of the thousands of children which come into the Chicago court yearly, so we have never been able to definitely answer the question of just what proportion is mentally defective.

This year I have asked the assistant director of the Institute, Miss Bronner, to undertake at regular periods cross-section studies of the population temporarily held in the Detention Home. These probably would average lower than if one could see every case which was brought into court, for frequently the most normal children who have been engaged in a single offense are not brought into the Home. The results which she is obtaining I shall merely hint at, but they serve to show that the psychological study of delinquency involves very much more than the discrimination of the feeble-minded.

Any one who observed the considerable proportion of 7th and 8th grade and high school girls and boys who become severely delinquent will not be surprised at our findings. At least 91 per cent. of the girls and 84 per cent. of the boys have been found so far to group normal mentally, if we take the 12 year old tests of Binet as a standard. Now, as a matter of fact, I am not at all inclined without further investigation to denominate anyone as mentally defective who can not pass the 12 year test, because of the obvious weakness of these particular five tests for judging such an important point. But still we have been willing to place this criticism for the moment aside. There are several details of this given study which might be interesting to discuss, but this will be done elsewhere.

The above statements are not offered so much in opposition to other estimates of the proportion of defectives among offenders as to show the possible variation of findings in different situations where delinquents may be seen, and to show the nature of the work of the psychologist in courts. We can easily see why institutions for delinquents contain a greater proportion of mental defectives than is found in court work, for obviously

the brighter ones are handled under probation, are found positions and succeed better on the outside because they have more foresight and learn better by experience. It may be that a larger percentage of the defectives will be found in studying older groups in court work. Perhaps the brighter individuals cease earlier to be offenders. I await with interest comparative findings from the newly established municipal court psychopathic institutes, in Boston and in Chicago. But of course fair general statistics can never be made without covering an unselected series of court cases, such as we have recently undertaken.

We must not find reason from the above figures to underestimate the exceedingly important problem of feeble-minded offenders. From their ranks one has to come to know some of the most frequent repeaters, some of the worst teachers of vice, and even some of the most adept in such skilled criminalistic occupations as burglary. To answer the problem of their care would be to relieve a strain on society that is not even suggested by a statement of their proportionate numbers among offenders. No one has been more surprised than we ourselves to find the extent to which morons are actively engaged in criminalistics, and are even definitely the instructors of others. The general notion that this class is merely easily led is altogether erroneous.

The extent of our findings of a single disease, namely epilepsy, among our repeated offenders we have often commented on. We need only to mention that about 7 per cent. have been found afflicted with various forms of this trouble. After all, this is only what might have been expected from similar observations of others elsewhere. The psychic manifestations of this disease make the victim a fit subject of study by the psychopathologist.

Many of our interests have centered about the problems of adolescence. We all know that criminalistic tendencies, those which perhaps control the career of a life time, nearly always first show themselves before the 19th or 20th year. The physiological aspects of this period are the ones that have been most frequently dwelled on, but for our purposes they may be ignored except as they influence the psyche. Overgrowth and restlessness and other phenomena at this time do not directly create criminalism. They have first to effect the mental life which directs action. We have found a fair field for investigation here, and one that opens up whole vistas of possible usefulness. Various new points of departure for legal procedure are to be

developed from data gathered concerning this period of life, not the least of which is criticism of that strange arbitrary discrimination under the law which says that boys at 17 and girls at 18 are suddenly responsible, mentally formed, able to properly care for themselves, when a few minutes or days previously they were not. Our studies show that these age limits were not based on practical observations of human beings.

Not the least interesting and therapeutically important part of psychological study of offenders is ascertainment of the mental mechanisms and mental content which stand in relation to delinquency. However it may be with older persons, and such experienced men as Parker in New York suggested that with adults this is a rich field for endeavor, we have studied many cases of criminalistic tendency in young people in which the whole trouble centered about some psychically untoward experience or some mental conflict. From this was developed a definite antisocial grudge, or at least an antisocial attitude. These cases, well understood, present some of the most curable criminalistic causes.

We must pass with bare mention such data as those on obsessional mental imagery and the formation of mental habits, both of which psychical phenomena play a considerable part in driving towards delinquency. To appreciate what sets the mental machinery turning out antisocial deeds we have to dig deep into many human experiences and many mental activities.

It was easily to be seen at the beginning of the work that there would be value in both extensive and intensive studies. The former would give a survey of the field which might lead to establishment of definite knowledge of the larger needs of the situation, would perhaps point the way to better legislation and public provision for various classes of offenders. The intensive work would furnish better understanding of types and the possibilities of their treatment. Then we soon realize that the careful and prolonged study of individual offenders was a rational preliminary to working up statistics from which general conclusions could be safely drawn. Time has justified this opinion. Nothing is rasher than to make general statements about social needs upon the basis of tests, observations and figures that have not been proved to solve the point at issue.

As an incident to the work with offenders the psychologist in court is occasionally asked about the reliability of witnesses. We have been

gathering data upon this point in hundreds of cases by some tests, and find the matter a very difficult one to generalize upon. In this we agree with various foreign students of the subject. The ability to be a good witness is a highly individual matter, and frequently involves the conditions of a given occasion, upon which tests do not throw any light. Occasionally from psychological study one can render a strong positive or negative opinion concerning individual capacities, but much more frequently it seems to us that no safe opinion can be rendered.

We would still maintain, as we ever have done, that the greatest hope for amelioration of the heavy burden of delinquency is in very early studies and early understandings of individual cases. Not only for scientific purposes but also for practical treatment the young individual with delinquent tendencies is best handled. Not entirely, since some social offences may first arise in late adolescence, but in a large share of cases some of the most valuable criminological work can be done by specialists in child study. Even in early periods of life intensive studies must be made, especially of children of the psychopathic type. We are more than glad to see the purpose all over the country.

One word more about method. Those who early suggested to us that intensive, continued study of a dozen offenders of a dozen different types would be worth more than a thousand short examinations spoke from a strong standpoint. Continuation studies are most valuable. They are necessary not only for giving understandings of types, but also for so understanding the individual that proper social adjustment of his case can be made. Our work shows plainly that except in the case of the grossly defective a short cross-section study is absolutely inadequate for the work in hand, namely, scientific treatment of the offender.

As we continue to see it, then, the purpose of psychological work with offenders is nothing more or less than the understanding of the causes of misconduct. By no other methods will such causes be known, and those who fail to reckon with the fundamental psychical conditions and processes which underly delinquency will never get far in developing better methods of treatment. Psychology in this field is perfectly willing to be judged by results, and that is the best self-recommendation that it can offer.

The application of well-rounded and safe psychological studies in court work (not the pseudo-psychology that our friends decry) offers to the law the important addition of a scientific method. It presumes to gather in all the available facts that bear on the conduct in question, to set down opinions of diagnosis and prognosis, and then to follow these up in connection with any treatment given to see how correct they may have been, and to offer the chance of such readjustment as may be necessary. There is a direct study, then, of predictability. Now this is exactly the method of every science that aims at self-improvement. Unfortunately, this scientific endeavor at self-improvement has heretofore not been the standpoint of the law. Nothing has been any more striking to us than our observations on this point. Now through the opening avenue of practical studies of mental life and conduct applied to offenders in connection with court proceedings, we see every reason to believe that the outlook may be much better for dealing with the whole problem of delinquency and crime.

THE EASTERN PENITENTIARY OF PENNSYLVANIA

[The following article from The Umpire, a paper printed at the Eastern Penitentiary, gives a graphic description, from a prisoner's standpoint, of that century-old prison, where once the rule of perpetual solitary confinement was imposed. Today it is noteworthy for the liberality of its rules.]

Sometime in the early "Forties," Charles Dickens, the eminent author, visited this institution, and the result of it is found incorporated in his "American Notes" published in 1842.

He strongly criticised the methods in force at that time and depicted conditions well calculated to arouse the indignation of every one with a spark of kindly feeling in their make-up.

Many people believe these same conditions exist at present, for Dickens' works are read quite as freely today as they have been at any time since they first left the press.

Then again, many people confound this institution with "Moyamensing," which is the county prison, and *somewhat* different.

Some of our contemporaries, and especially those in Western States, are evidently under the impression that the system in vogue fifty years ago is yet in force in this institution, and so far from giving any indication of being fully abreast of the times as they claim, one would suppose they must have enjoyed a period of oblivion, second only to that of dear old Rip Van Winkle.

More especially for their benefit therefore, it is said that the Eastern Penitentiary of Pennsylvania, situated in the city of Philadelphia, has for at least five years maintained a system of humanitarian treatment of its inmates which is the STANDARD FOR THIS COUNTRY, IF NOT FOR THE WORLD.

Among the benefits enjoyed by the people in this place, first is WORK. Every man who is able, finds some occupation suited to his capacity.

Thirty-five per cent. of them are engaged in different occupations in which they share in the profits to the extent of from \$5 to \$15 per month. Labor unions have decreed that not more than this number shall be so employed. But all others are engaged in some labor, for which the State makes a very small allowance, sufficient to keep them in tobacco, which is permitted in every form excepting cigarettes.

What these earnings amount to may be told right here, through figures taken from the last annual report:

Sent to relatives, etc., \$24,626.75; drew in cash on discharge, \$6,721.91; spent for sundries, \$12,036.90; on hand in savings banks, \$3,795.00; cash to their credit in office, \$12,278.18. A *per capita* "wealth" of a trifle over \$10.

The average population is a little over 1400, but at this season of the year we hover around the 1500 mark. Of this number, 500 are attending the schools of this place, which are under the supervision of a salaried teacher, who is assisted by inmates selected on account of their qualifications for this kind of work. In addition, there is a correspondence school for the higher branches of English, where men receive instructions in their cells from visiting teachers.

We have trade schools, where men are taught carpentry, brick laying, plumbing, plastering, and the different branches of electricity. Instructions are both theoretical and practical.

We have a band of 40 pieces with an auxiliary band of the same number under the direction of a salaried musician, who is in attendance six days a week.

We have an orchestra of twelve pieces wholly under the direction of the inmates, who arrange their own programs without suggestions or interference from the officials, and the Saturday night concerts they give throughout the year will compare favorably with those of any similar organization in the outside world.

We have a hospital which is maintained for the sick, and not as a loafing place for influential prisoners, which is the custom in so many penal institutions. The physician with his family resides in the institution and responds quickly to calls at any hour during the day or night. The inmates are weighed once a month, and any deviation of more than five pounds is

called to the attention of the physician, who immediately examines the man, to learn the cause. Many cases of serious disease have thus been caught in their incipient stages, and cures effected by prompt attention. The hospital patients are waited on by salaried trained nurses day and night, while the druggist is also a salaried official of the institution.

In addition to the regular resident physician, there is a consulting staff made up of some of the most widely known specialists in the State, who give freely of their best services.

We have a dentist who is in attendance daily from 2 P. M. until as late as necessary, and every class of dental work is executed by him.

An optician is in attendance twice every week.

We have fewer rules to obey than the people outside the walls and every one of them is for the comfort of the men, and not to degrade or annoy them.

The silent system was abolished so many years ago it is forgotten it ever existed.

At no time is a man's hair clipped, unless he so desires it, and he may wear any style of facial adornment in the way of whiskers that suits his fancy.

We wear no stripes, but a uniform of blue and white mixed cloth. About one fourth of the men are permitted to have their clothes made to measure by the prison tailor, and these are cut and finished in a style equal to any \$15 suit in the open market. A vici kid dress shoe is now being issued in place of the old time "brogans." It has already proven its economy.

Every man is given a complete new outfit, when he enters the prison, and this is renewed from time to time as it wears out. No used clothing is given to an inmate. When a man is discharged, what clothing he had is sent to the incinerating plant, and destroyed.

The cells vary in size and average 8 × 12 by 12 feet high, with a sky-light let into the roof and controlled by the inmate. There are double doors, but the outer one is never entirely closed, day or night. A steam radiator with individual control and portable electric light is in every cell.

The men are permitted to furnish their cells at their own expense in any manner they choose, and many of them are really luxurious.

Any kind of a musical instrument, excepting a drum, is permitted, and some men have installed pianos and organs. Canary birds are the only pets allowed, and there are hundreds of them carolling all over the place from early morning until dark.

Running water from the city mains is in every cell but it is only used for domestic purposes. The drinking water is boiled and then passed through iced coils, so that we have unlimited quantities of iced water summer and winter.

Every cell has a heavy white porcelain hopper, entirely free from sewer gas and odors. When they erect a monument to Warden McKenty, they will mention this hopper.

The Catholic chaplain celebrates mass every Sunday morning at seven o'clock, and at nine o'clock nine Protestant services are held simultaneously on the different blocks, by upward of one hundred people. At three in the afternoon, visiting choirs from different denominations render a sacred concert on the Center.

The men are allowed all kinds of tools and material necessary to any work they may care to undertake for pleasure or profit, and the management encourages such efforts by finding a ready sale for the product. One man made \$700 last year another \$400 and a dozen of them are earning more than \$200 a year through work of this kind.

Every man has the privilege of the yard daily for a time, during five days in the week. Sunday is the day when everything is closed down tight after church services.

The baseball league is now in its fourth year and numbers nearly one hundred men. Games attended by the inmates, are played daily except Sunday during the season. Quoits and hand ball are in evidence at all hours.

A semi-dark cell is the only form of punishment. The officer inflicting it usually apologizes for being forced to go to this extreme.

We have 90 officers, and there is not a brute in the whole lot, and only three "cranks."

We are within ten minutes walk of the business center of one of the great cities of the world, and there are no roads upon which we may be employed

in repairing. This is a matter for congratulation.

Philadelphia had the road building system in force 125 years ago, and it was the sight of the humiliation and indignities suffered by the prisoners from malicious onlookers that inspired the thought resulting in the erection of this prison. Road building for prisoners in Philadelphia would mean a backward step of over 100 years, before the West and particularly Oregon was born.

The United States Government, with a full appreciation of the humanitarian methods in force here, is sending its prisoners to this institution from points as far as the middle West.

Much more could be said in favor of the Eastern Penitentiary, but let this suffice: We have every comfort, and benefit accorded to prisoners in any penal institute in the United States, —and then a whole lot more.

At the same time THE UMPIRE does not recommend it as a place of residence.

EVENTS IN BRIEF

[Under this heading will appear each month numerous paragraphs of general interest, relating to the prison field and the treatment of the delinquent.]

Warden Bridges.—The Boston (Mass.) Record says:

Warden Bridges wishes to retire from the post at the State Prison which he has held for more than 20 years. He is past 78 years of age. If Gen. Bridges insists upon his retirement the State will lose the services of a man who through a long career in a post of extreme difficulty has maintained the dignity and efficiency of an important branch of the public service in a manner which will never be forgotten. The trials and suspense of such a position as Gen. Bridges has held for two decades are hardly weighed by the average citizen, who regards them as matters of course, and expects, in this State, thorough efficiency. During these past 20 years that public expectation has not been disappointed. It has been worth much to the Commonwealth to have had a man of Gen. Bridges' sort at the head of its State Prison.

He assumed his present position in 1893 when he was appointed by the late Governor William E. Russell. Only one prisoner remains who has been an inmate continuously since General Bridges took control. The man is Jesse Pomeroy.

Convict Labor and Labor Unions—According to the Cedar Rapids (Ia.) Times, Union labor's war to prohibit state authorities to allow honor prisoners at the penitentiary at Fort Madison to work for outsiders as painters, plumbers, etc., at Fort Madison, will now go into court, following the passage of an ordinance by the Fort Madison city council, which prohibits prisoners entering the city only on official business. Police will be

ordered to arrest them and the ordinance provides for a fine of from \$1 to \$100 in violation of the ordinance. The war against the system has been going on for two years. The Governor and State labor commissioners have been appealed to but nothing was done. The State board of control allowed Warden Sanders to put honor prisoners outside in competition with union labor. Leaders of union labor took the matter to the city council, which resulted in the passage of the prohibitory measure and will now be tested out in court.

Says Georgia to Tennessee—The Atlanta Georgian has this to say in a recent issue:

“Since Governor Hooper of Tennessee and his party of prison investigators, who came to Atlanta last week to inspect convict conditions in Georgia, have returned home they have given interviews to Tennessee papers upholding the Tennessee system of convict control as superior to that of Georgia, particularly from health and humanitarian viewpoints.

“To one who has spent several years in each state and has had opportunity to observe the prison systems of the two states—not in a three-day cursory inspection, but at frequent intervals extending over these several years—the view’s of the Tennesseans seem open to question.

“In Georgia all the able-bodied men convicts are worked out of doors, under the direct supervision of state and county officials and inspectors, constructing public highways.

“In Tennessee about half of the able-bodied convicts are worked under ground in state-owned and operated mines, having exceedingly little opportunity to enjoy the fresh air and sunlight necessary to the physical well-being of a man. The other able-bodied half are worked in factories within the penitentiary walls at Nashville under the lease system that Georgia five years ago abolished as inhuman and unjust.

“A small per cent., too old or too infirm for mine or factory, are worked on a farm adjacent to the Tennessee penitentiary. Georgia has equally as good a

farm at Milledgeville for its prisoners of the same class who are not fitted for work on the roads.

“Tennessee convicts in the mines and in the factories come in direct competition with organized free labor. Georgia’s road building convicts are worked for and not in competition with other classes of labor.

“It is true that the temporary road building camps, which of necessity must be moved from place to place as construction progresses, do not possess the permanent sanitary improvements that Tennessee has installed inside the walls and at the mines—a condition to which the Tennessee party calls attention—yet this is more than offset by the health-giving open-air life led by the Georgia prisoners.

“It is a matter of record that both Governor Hooper and his predecessor, Governor Patterson, pardoned hundreds of Tennessee convicts because they were victims of tuberculosis, produced by the close confinement in the mines and factories. Without comparative statistics on which to base the assertion, the writer is confident that in the last five years there have been at least fifty per cent. more cases of tuberculosis among Tennessee than Georgia convicts, despite the fact that Georgia with its larger area and population, has about fifty per cent. more convicts than Tennessee, of whom eighty per cent. are negroes against Tennessee’s sixty per cent. of negro prisoners.

“Governor Hooper says Georgia is making fine roads. There may not be as many prayer meetings in the Georgia road camps as in the Tennessee mines, but Georgia is not blindly killing off the bodies with tuberculosis while trying to save its convicts’ souls. Georgia believes in saving both, but says to save the body first and have a better chance at saving the soul.”

A New Warden at Sing Sing.—Warden Clancy, who made a creditable record at Sing Sing, has resigned, and Superintendent of Prisons Riley has appointed Thomas T. McCormick of Yonkers as warden. Which leads the New York Evening Post to say:

“Sing Sing Prison has long been a disgrace to the State, but this fact was never so familiar to the people as it has been during the past few months. The Superintendent of Prisons appears, however, to think the present an auspicious moment for placing in charge of the prison a man whose only recommendation for the post, so far as known to the public, is that he has been successful in the plumbing business, and that he is one of the mainstays of the Westchester County Democratic machine. In the face of things like this, the men and women who are laboring to get our penal institutions properly conducted have need of all the faith and resolution they can command to keep on in their endeavor. But they *will* keep on, and the time will come when the idea of appointing the warden of a great prison for any other reason than his special fitness to conduct it wisely and well will seem too monstrous for belief. We must not forget the encouragement there is in the fact that, bad as these things are now, we have got beyond the utter shamelessness which was so often shown in former times.”

The New York Commission on Prison Reform—The New York State Commission on Prison Reform which was appointed by Sulzer a year ago has just filed the preliminary report of its findings. The commission of which Thomas Mott Osborne is chairman was authorized to examine and investigate the management and affairs of the several State prisons and reformatories, the prison industries, employment of convict labor and all subjects relating to the proper maintenance and control of the State prisons of the State. The Commission has made careful study of these several matters and the report which has been released contains many interesting and valuable suggestions.

The abolition of the ill-famed Sing Sing prison is recommended and the erection on its site of a receiving station for the observance and study of all persons sentenced to imprisonment in a State prison for medical examination and treatment of those afflicted with diseases and for weeding out those found to be mentally defective—the latter to be sent to separate institutions devoted solely to the care of the mentally defective.

The indeterminate sentence is a further recommendation of the Commission, which urges that the penal law of the State be so amended as

to make it incumbent on all judges sentencing prisoners to confinement in a State prison to impose sentences without either maximum or minimum limit; while for the purpose of investigating all applications for pardon and parole it is suggested that local advisory boards of pardon and parole be instituted in connection with each prison and reformatory of the State.

The Commission places itself on record as favoring the employment of able bodied male convicts in constructing and repairing the highways of the State and the several counties in addition to which farms should be developed at all of the institutions so that as many convicts as possible may be employed in the open air—all possible work to be conducted under the so-called honor system, together with a considerable and increasing measure of self-government.

As a final and essential basis for permanent improvement the Commission recommends the consolidation and reorganization of the various offices, boards and commissions which now divide among them the administration of the prison affairs of the State into a permanent State Department of Correction, to which the entire penal administration of the State shall be committed.

Will Works or Won't Works?—An examination of 2000 inmates of the New York municipal lodging house showed that 63 per cent. of the 2000 were able to do hard work; another 10 per cent. were capable of doing lighter work, such as gardening or using a broom, and still another 9 per cent. could do extremely light work, but still enough to keep themselves in food and decent clothing. More light would have been thrown on the general subject of unemployment if the city had been able to go further and learn how many of this 2000 would be willing to do the work they were physically capable of doing, were the chance actually offered.

More Privileges at Stillwater—Prisoners at the penitentiary at Stillwater demonstrate in many ways their approval of the new rules inaugurated by

Warden Henry Wolfer.

All the men in the third grade have been advanced to the second grade, and now not a stripe is worn in the new prison.

All convicts will be permitted to talk to their neighbors at meal time Sundays and holidays.

Each Tuesday and Friday at 4.30 P.M. motion picture shows will be given in the prison auditorium. The prisoners are given half day off on Saturday.

Prisoners Earning Money at Joliet.—Warden Edmund M. Allen of the Joliet penitentiary announces that for the first time in Illinois prisoners employed in a penitentiary have become wage earners.

Employees in the reed and rattan department, where furniture is made, have been given a share in the earnings. There has followed a marked improvement in efficiency. Each employee earned \$5.69 in March—small, but a beginning.

Prisoners in this work learn a trade which can be followed profitably upon their obtaining freedom. In March, 1914, with 259 workingmen, 6,595 pieces were made, as against 5,153 in March, 1913, with 288 employees. In April \$6.32 per man was earned.

In addition to the share in the profits granted to employees in the reed and rattan shop, the warden has given the prisoners the privilege of making any articles which they are capable of manufacturing in their cells during leisure hours. Materials are supplied where the supplies of the prison permit, and the articles made are sold by the prison and the money given to the convicts.

Joliet convicts to the number of 500 were back at their work peacefully recently following a night of fire-fighting when flames destroyed a portion of the rattan shop of the State penitentiary. Convicts, from embezzlers to life termers, fought side by side with the prison guards and members of the Joliet fire department. None tried to make their escape, and when the fire

companies withdrew from the blackened ruins the men quietly returned to their cells.

Warden Allen says that he believes the introduction of the “honor system” during his administration had much to do with the action of the prisoners. For a long time the big east gate leading to the prison stood open, and he has yet to learn of any prisoner that made any attempt to get away.

Harmless “Pirates.”—At the State Reformatory for Women in Massachusetts, on June 6th, before an audience of 300 guests, friends of the institution, the “Pirates of Penzance” was given by the women inmates. About 60 of the women took part on the stage. The excellent work and good voices were a surprise and gratification, and this performance, which was heartily applauded, was, undoubtedly, the most elaborate and successful ever given by inmates of any penal institution in the country.

The costumes, stage arrangements and decorations, were the work of the women. All winter long the work has been an uplifting and engaging employment for all the inmates, giving them new tasks outside the daily prison routine.

At the rehearsals, the 350 inmates have gathered in the large hall, and watched the performance of the 50 to 60 women on the platform. The study and work has benefited every inmate, and especially inspired all who took part.

The work is an indication of the broad scheme of Mrs. Jessie D. Hodder and her staff in renewing the lives of the women in her charge.

New Prison Training Effective—So says the Buffalo Inquirer: Of the 1,639 convicts in the Ohio State prison at Columbus, 1,331 are first termers. Of the 784 discharged and the 743 received in the last year only fourteen were second termers.

“Such figures indicate that the Ohio prison management is doing something to lessen the number of repeaters. Apparently the training the prisoners receive is doing something to work up the ability and will to lead to the life that saves them from being sent back again.

“It is related that the 500 Ohio prisoners who were allowed to work in the open last year on their promise not to run away only twenty-four escaped. That is to say, ninety-five per cent. showed the stamina to stay on the prison job and five per cent. yielded to the temptation to make a break for liberty. The ninety-five per cent. capable of staying in prison when they might have escaped should be capable of keeping out of prison after their release. Every statistical table showing a diminished proportion of ‘repeaters’ is evidence that the new training is really accomplishing in the way of abolishing the ‘comebacks.’”

The Situation in New Jersey—The Plainfield (N.J.) Courier outlines it as follows:

It is claimed that politics interferes with the harmonious solution of the new labor system in the State Prison, replacing the prison labor contract system. The interruption has created an annoyance, because all the present labor contracts at the State Prison expire on July 1, and a serious condition will be presented for the majority of the 1,400 convicts will be thrown into lives of idleness. State Prison Keeper Thomas B. Madden regards the prospect as menacing. On July 1 all the prison contractors will cease their work and will remove their machinery from the prison shops where so long the prisoners were kept busy manufacturing shoes, clothing, brooms, brushes, caps, handkerchiefs, overalls, etc., will be closed until the new prison labor methods can be put into operation. It will take at least six months to get the new system fully installed.

No definite plans exist for an immediate resumption of labor in the prison, although the act abolished the prison labor contract system and substituting the “State use” method under which the convicts manufactures articles for use in all the State institutions, was passed in 1911, three years ago. The new Commission is composed of Cook Conklin, of Bergen county,

president; Commissioner of Charities and Corrections Joseph P. Byers, of Trenton, secretary; Joseph M. Dear, of Jersey City, representing the Board of State Prison Inspectors; Freeman Woodbridge, of Middlesex county, representing the Board of Managers of the Rahway Reformatory; Richard H. More, of Bridgeton, and Henry Isleib of Paterson.

“The condition is a serious one,” said Prison Keeper Madden today, “and I do not know what we are going to do after July 1 when all the prison shops must be closed. I know what it means to have a big lot of prisoners idle, for I was here back in the hard times of 1873 when one of the big prison contractors failed and the shops were closed down. We had trouble then, and there were not nearly so many prisoners as we have now.”

The act of 1911 abolishing the contract labor system created a Prison Labor Commission composed of the Commissioner of Charities and Corrections, the warden of the State prison, the superintendent of the Rahway Reformatory and two other persons to be appointed by the Governor. President Wilson was then Governor and his appointments made the Commission Democratic. It has been claimed that if the original commission had been let alone something would have been accomplished ere this. In 1912 the Legislature was Republican. A bill was introduced changing the Prison Labor Commission so that it would be composed of six men, three Republicans and three Democrats. This was passed and Governor Wilson promptly vetoed it as also were many other bills sent to him by the Republican law makers. This bill was passed over his veto, together with a lot of others, thus revolutionizing the Commission. This is the Commission which has just been legislated out of office.

Prison Keeper Madden does not think the “State use” will employ nearly all the convicts. For instance, less than ten prisoners now do all the tailoring work for the 1,400 men in the prison, so that, in his opinion, all the industrial needs of the various State institutions will be met without using the labor of anything like all the convicts in the prison. It has been suggested that more convicts be employed outside the prison, and that then some of the others be employed in remodeling the old and unsanitary sections of the prison. This plan will likely be discussed by the Commissioners next Tuesday. Only about 65 prisoners are now employed on the roads of the State, and it is proposed that this be increased to 300. The suggestion is that at least 150 convicts be sent to the Prison Farm in

Cumberland county, where only 87 are now at work. There is a law permitting the State to acquire a prison to mine and crush stone for good road work, and it is urged that this would be put in operation and 100 convicts employed in this way. An average of fifteen per cent. of the convicts are employed in the prison as domestics and general helpers, or are in ill health and cannot work. This leaves in round numbers, 600 convicts to be utilized in the prison industrial system.

It would take from six months to a year, however, to put all these plans into operation. Meanwhile the pressing problem is what to do at once.

An appropriation of \$25,000 is available in the supplemental bill for immediate use for the establishment of the new prison labor system, but although the money has been ready since April 15, nothing has been done about utilizing it to meet the need.

Shale.—Says the Boston Transcript: Shale is to be no longer the outcast of the rock and soil families. It is fit to make into brick to be laid down for the best of highways. In the past to point at a bit of land and say, “Shale,” meant that the sale for any price above the waste lot figure was impossible. The shale land farmer never prospered. The word was good only for the novelist to write into the descriptions of places where ghosts were found. But shale is about to be respected. It may be fit punishment for that despised rock and soil derived from that rock that it should be placed under the feet of men, the hoofs of horses and the rubber of the auto tires, to be pulverized slowly into dust, but that does not matter. Shale is making a reputation. Governor Glynn of New York has announced that the tests of brick made from shale about the Elmira reformatory have proved that the bricks are right for laying down for the surface of highways. Samples of the brick sent to the makers of clay brick machinery have been found to fill all the requirements of the experts there employed, and that means that shale almost anywhere may be made into brick with such economy that it is forthwith regarded as one of the best materials for surface highways. The advantage of the shale about the Elmira reformatory is that the convicts there can be employed to collect the material and make the brick for State roads. The highway commissioner and a scientist are to direct the

construction of buildings at the reformatory for the manufacture of brick. Convicts are to make the brick and put up the plant for permanent operations of the same materials. In many reports of industrial enterprises of late there is used the expression, economy was the result of finding the building materials on the spot or close by. The use of shale in many sections is bound to come under that head. Brick is now made of many materials which in the past have been tabooed. Sand is considered as good as clay for making brick, and it is handier to many places. The use of different materials makes a variety in the building materials of blocks. Cities look better because of that variety. But one of the best uses for brick appears now to be the surfacing of roads for the joy machines as well as the business motors of all kinds, and for horses. In the course of time the country turnpikes may be generally paved like city streets, at least with hard brick and that will have been done at reasonable cost to the country because of the employment of convict labor.

In Kentucky: The New York Evening Post says editorially:—"From Kentucky comes the report of a decision of its Court of Appeals which appears to be most unfortunate in its effect, but entirely justified by the facts of the case. The decision declares unconstitutional a prison-reform act passed by the Legislature in 1910, which provided for one of the State prisons becoming a reformatory for first offenders, and the other a penitentiary, for the education of prisoners, and for the assignment to them of a portion of their earnings under the prison labor contracts. The decision was not based on any objection whatever to the provisions of the bill; neither was it grounded on a "technicality". The trouble was that the bill, which was in the nature of an addition of new sections to a pre-existing law, did not set forth the whole act as it would appear after amendment, as required by the State Constitution; also the payment of prisoners was not mentioned in the title. The Court disavowed any desire to interfere with the freedom of the Legislature except so far as distinctly required by the Constitution; but the opinion went on, "to say that this act does not boldly violate section 51 would be to say that the words of this section have no meaning or effect, and that a section of the Constitution has no more force

than a legislative act.” There is no getting away from this view of such a matter, unless we are to take the position that there should be no Constitutions at all. In support of that position there is room for valid argument; but to have a Constitution, and yet set it aside when we please, is to invite the dangers that would go with the abolition of Constitutions without getting its advantages.”

The Indeterminate Sentence and “Good Time.”—According to the Louisville (Ky.) Courier Journal, “some of the prisoners in the Frankfort Reformatory are said to be preparing to file a suit to compel the Prison Commission to carry out the law which gives eighty-four days’ good time to every convict.

“There is no question as to the existence of such a law, but the Prison Commission has not seen proper to apply it to those prisoners who were convicted under the indeterminate sentence law. This seems to have been in accordance with common sense. A prisoner sent up under the indeterminate sentence law for a term of, say, one to five years is eligible to parole after he has served his minimum term of one year. If the good time allowance also is applied such a prisoner, one of the commissioners has pointed out, would have to serve only about nine months to be eligible for parole.

“The absurdity of making a good time allowance to those who are serving the so-called indeterminate sentence is more apparent when the case of a prisoner convicted of manslaughter is considered. This prisoner was sentenced to serve from two to twenty-five years. In the natural course of events he would be eligible to parole after two years. Given the benefit of the annual good time allowance he would have to serve only about eighteen months before being eligible for parole.

“The Attorney General has given an opinion to the effect that the prisoners convicted under the indeterminate sentence law are entitled to the good time allowance. Evidently there has been a good deal of legislative bungling in connection with these prison laws. With a few more amendments it is much to be feared the State will be unable to keep anybody at all in the penitentiary longer than the time required for hearing a mandamus suit.”

How Newspapers Err.—The Providence (R.I.) News says that:

“There was a queer mix-up over a sentence passed by the district court of Minnesota on a youth of twenty years. Two New York state papers had the story that the youth was sentenced to forty years in prison for robbing a man of \$1.85. One paper used the sentence as a text for a general cry down of Wisconsin’s very progressive, although what a sentence passed in St. Paul had to do with the laws of Wisconsin, progressive or otherwise, was not clear. The other paper commented on the affair under the caption: ‘The Crime of a Court.’

“It appears by a letter from Judge Orr, who sentenced the youth, that he was not sentenced to forty years in prison, but was sentenced under the indeterminate law, and can, after two years, apply for a parole. It is true that in robbery cases the maximum sentence is forty years, but it is up to the board of parole and to the youth himself, very largely to the youth, as to how long he will stay in prison. As the young man had been a waif and pleaded guilty, the story, if true, was one that could not fail to cause indignation. There was very little truth about it, fortunately, and Judge Orr, speaking for his state says:

‘Minnesota is in the front rank in the matter of legislation recognizing the principles of modern penology and criminology, including the indeterminate sentence all cases, limited suspension of sentence, etc., and the administration of justice in the courts of this state is in full sympathy and accord with the statutes. Such blunders as these are apt to do courts everywhere an injury, so the truth should be known.’”

Convicts make Brick and do other Work in Ohio.—Shipments have been started from the brick plant established by the State board of administration for the employment of penitentiary prisoners at Junction City, Perry county, Ohio. Mason Chilcote of East Liverpool, is the superintendent of the plant. Fifty prisoners are employed at the plant and as soon as a new dormitory is completed another fifty will be sent there. The plant can turn out 40,000

bricks daily. State Highway Commissioner James R. Marker says that his department can use the entire output of the plant for road building.

By using the convicts the State board of administration saved the State more than \$2,000 in tearing down old buildings and excavating for the new administration structure at the Institution for the Blind in Columbus.

It required 24 convicts 8274 hours to do the work. They were paid three cents an hour by the State. The total was \$248.22. The same number of hours paid for at 27-1/2 cents an hour, the prevailing rate of wages, would have cost the State \$2,275.35.

Besides saving the money to the State the board furnished outdoor labor for the prisoners.

Work on the foundation of the new structure which is to house the board of administration, has been commenced. It is expected to have the building ready for occupancy by early fall.

Board of City Magistrates of the City of New York (First Division).—The annual report giving the work of magistrates in Manhattan and the Bronx in the City of New York is always anticipated with great interest, and is read with an increasing amount of satisfaction both in general progress recorded and in the improvement of form and statistical method. It is a great pity as Chief Magistrate McAdoo remarks, that the important strides toward significant criminal statistics that are being made in the magistrates' courts can not be combined and developed, together with data from the higher criminal courts. There should be, in any event, a centralized statistical bureau, covering all the courts concerned with the criminal bar in Greater New York. "What was done with the man I held for keeping a gambling house, a disorderly house, or maintaining a public nuisance last month or the month before. I don't know——." We might add, "Nor does any one else know." The report presents the work of eight district courts, a night court for men, and a night court for women, and two domestic relations courts. There is no end of interesting material in it. Perhaps the most interesting facts, however, relate to the extension of the use of the finger-prints to cases of disorderly conduct, "jostling" and "mashing," with

prospects of soon including automobile speeders; and the increase of the percentage of convicted among those arranged. The former will make it difficult for real lawbreakers to escape punishment after arrest, while the latter shows that the number of arrests of innocent persons is fast diminishing. A remarkable fact is also the diminution of the number of defendants placed on probation, directly attributable to the greater frequency of preliminary investigations of such cases by probation officers.

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H. L. McCORMICK, Notary Public No. 6, Kings County.
My Commission expires March 31, 1914.

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